

Smt. Najma Bano v. State of U.P.

Allahabad High Court · Division Bench · 1 May 2025 · 2025:AHC:69458-DB · Writ-C No. 8848 of 2025 · **Writ disposed; relegated to Clause 6.5; restoration to be considered.**

HEADNOTE

A grievance of incorrect electricity bill and disconnection is more appropriately examined by the third respondent under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed with a direction to decide the claim within four weeks of approach with a certified copy, and to consider restoration of supply within a week of representation.

FACTUAL SUMMARY

Smt. Najma Bano invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and three others. She complained that an incorrect electricity bill had been imposed and that her supply had been disconnected, and she sought interference with the bill and restoration of electricity. The Court took no evidence on the correctness of the bill or the legality of the disconnection, treating both as matters for the third respondent under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A grievance of incorrect imposition of bill and disconnection is more appropriately examined by the third respondent under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer approaches that authority with a certified copy of the order, the claim is to be examined and appropriate orders passed within four weeks, and the claim for restoration of electricity is to be considered within a week of the representation. The writ is disposed of on those directions without a merits determination. ¶ 1

FLAG Clause 6.5 cited for both the billing objection and disconnection/restoration; the order does not specify a sub-clause.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A grievance of incorrect electricity bill and disconnection is more appropriately examined by the third respondent under Clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND LEGALITY OF THE DISCONNECTION

Left to the third respondent under Clause 6.5; restoration also to be considered on representation. ¶ 1